

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS-----X
SHARIFE MOHAMMED,

Plaintiff,

-against-

SUMMONS AND VERIFIED
COMPLAINT

Index No.:

Date Filed: _____

Plaintiff(s) designates
KINGS

County as the place of trial

The basis of venue is

Where action arose

Summons with Notice

THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT, POLICE OFFICER ROGINSKI
TAX ID NO. 955405 of the 67th precinct, in his personal
and official capacity, POLICE OFFICERS JOHN DOES 1-
10 of the 67th precinct (identities are presently unknown), in
their personal and official capacity, ALL POLICE
OFFICERS INVOLVED IN THE INCIDENTS CLAIMED
HEREIN, AND ALL SUPERVISORY POLICE
OFFICERS VESTED AND CHARGED WITH
COMMANDING AUTHORITY OVER THE POLICE
OFFICERS CLAIMED HEREIN, all in their individual and
official capacities.

Defendants.
-----X

To the above named Defendant(s)

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your
answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's
Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after
the service is complete if this summons is not personally delivered to you within the State of New York); and in case
of your failure to appear or answer, judgment will be taken against you by default for the relief demanded herein.

Dated: April 6, 2016


BY: ALEXANDER ROYTBAT, ESQ.

This SUMMONS AND COMPLAINT
and the papers on which it is based, are certified
pursuant to Section 130-1.1-a of the rules of the
Chief Administrator (22NYCRR)

ROYTBAT & KALANT, PLLC

Attorney(s) for Plaintiff(s)

Office and Post Office Address

91-31 Queens Blvd. Ste. 313

Elmhurst, New York 313

(718) 872-6374

Notice: The object of this action is to recover for personal injury
due to defendant(s) negligence

The relief sought is Monetary Damages

Upon your failure to appear, judgment will be taken against you by default for the sum of with interest
from May 24, 2015 and the costs of this action

DEFENDANT(S) ADDRESS(ES)

NEW YORK CITY
100 Church Street
New York, New York 10007

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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-against-

VERIFIED COMPLAINT

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official capacities.

Defendants.

-----X
Plaintiff, complaining of the defendants, by his attorney, upon information and belief,
respectfully allege(s):

AS AND FOR A FIRST CAUSE OF ACTION
ON BEHALF OF PLAINTIFF SHARIFE MOHAMMED

1. That at all the times herein mentioned the defendant THE CITY OF NEW YORK, (hereinafter referred to as NYC), was and still is a municipal corporation, duly organized and existing under and by virtue of the laws of the State of New York.
2. That at all the times herein mentioned, the defendant POLICE OFFICER ROGINSKI Tax No. 955405 of the 67th precinct (hereinafter referred to as ROGINSKI) was and still is a police officer employed by defendant, NYC.
3. That at all the times herein mentioned, the defendant POLICE OFFICERS JOHN DOE 1-10 of the 67th Precinct (identities are presently unknown) (here and after referred to as John Does 1-10)

were and still is a police officer employed by defendant, NYC.

4. That at all the times herein mentioned, the defendants ALL-POLICE OFFICERS INVOLVED IN THE INCIDENTS CLAIMED HEREIN, AND ALL SUPERVISORY POLICE OFFICERS VESTED AND CHARGED WITH COMMANDING AUTHORITY OVER THE POLICE OFFICERS CLAIMED HEREIN (hereinafter OFFICERS WITH COMMANDING AUTHORITY) were and still are employed as assistants of the Kings County District Attorney and NYC.

5. That notice of plaintiff's claim and notice of intention to sue and of the time when and the place where the injuries alleged herein were incurred and sustained was duly filed by the plaintiffs with the Corporation Counsel of the defendant NYC and with the Comptroller of the defendant NYC, with the Legal Department of the NEW YORK CITY POLICE DEPARTMENT (hereinafter referred to as NYCPD) and the Office of the Kings County District attorney's Office (hereinafter referred to as KINGS DA's OFFICE), within 90 days after the cause of action herein accrued.

6. That 30 days have elapsed since filing Notice of Claim and that a hearing was held 9/02/2015 at 1PM.

8. That more than 30 days have elapsed since the demand for claim upon which this action was founded was presented for adjustment and that the Comptroller has neglected and refused to make adjustment or payment thereof for said period of 30 days after such presentation, and that this action is commenced within one year after the cause of action accrued.

9. That on MAY 24, 2015, at approximately 6:00 PM in front of 950 Rutland Road Brooklyn, New York 11212, defendants POLICE OFFICER RONINSKI and POLICE OFFICERS JOHN DOE 1-10 of the 67th precinct unjustifiably, maliciously, wantonly and falsely accused of and maliciously prosecute plaintiff with the violations of the New York Penal Law of criminal contempt.

10 That on MAY 24, 2015, at approximately 6:00 PM in front of 950 Rutland Road Brooklyn, New York 11212 POLICE OFFICER RONINSKI and POLICE OFFICERS JOHN DOE 1-10 of the 67th precinct unjustifiably detained and arrested, plaintiff SHARIFE MOHAMMED, causing her, but not limited to loss of liberty, personal injuries including but not limited to emotional shock, mental anguish, psychological and emotional disturbances, emotional distress, medical expenses, legal expenses, loss of property, libel and slander.

11. That on MAY 24, 2015, at approximately 6:00 PM in front of 950 Rutland Road Brooklyn, New York 11212, POLICE OFFICER RONINSKI and POLICE OFFICERS JOHN DOE 1-10 of the 67th precinct, did handcuff, falsely arrest, falsely charge, unlawfully detain and maliciously prosecute plaintiff with the penal law violations of criminal contempt.

12. That the aforesaid acts of defendants were willful, intentional and unwarranted and without any just cause or provocation.

13. That at all times herein mentioned, and specifically on MAY 24, 2015, defendants POLICE OFFICER RONINSKI, POLICE OFFICERS JOHN DOE 1-10, and OFFICERS WITH COMMANDING AUTHORITY of the 67th precinct, were on duty as Police Officers for defendants NYC and NYCPD.

14. That at all the times herein mentioned, and specifically on MAY 24, 2015, POLICE OFFICER RONINSKI, POLICE OFFICERS JOHN DOE 1-10, and OFFICERS WITH COMMANDING AUTHORITY of the 67th precinct were in uniform as Police Officers for defendants NYC and NYCPD.

15. That at all the times herein mentioned, and specifically on MAY 24, 2015, POLICE OFFICER RONINSKI, POLICE OFFICERS JOHN DOE 1-10, and OFFICERS WITH COMMANDING AUTHORITY of the 67th precinct, was acting within the scope of his employment as police officers for defendant NYC and NYCPD.

16. That the defendants NYC, NYCPD, defendant on MAY 24, 2015, defendants POLICE OFFICER RONINSKI , POLICE OFFICERS JOHN DOE 1-10, and OFFICERS WITH COMMANDING AUTHORITY of the 67th precinct, their agents, servants and/or employees were negligent in performing their duties; in failing to protect plaintiff from actual and imminent harm; in hiring and/or retaining in its employ personnel who are violent and/or possess violent propensities; who would assault and commit battery on law abiding individuals; law enforcement personnel who make an arrest without reasonable cause; in failing to adequately train and supervise its personnel; in causing, allowing and/or permitting unwarranted use of force and restraint against claimant; and in causing, allowing or permitting its personnel to improperly effectuate arrest, all in violation of statutes, ordinances and regulations.

17. That at all the times herein mentioned, the actions of the defendants NYC, NYCPD, defendant POLICE OFFICER RONINSKI, POLICE OFFICERS JOHN DOE 1-10, and OFFICERS WITH COMMANDING AUTHORITY of the 67th Precinct were negligent and not in accordance with proper procedures and regulations.

18. That the defendants NYC, NYCPD POLICE OFFICER RONINSKI, POLICE OFFICERS JOHN DOE 1-10 and OFFICERS WITH COMMANDING AUTHORITY of the 67th precinct, their agents, servants and/or employees owed a duty of care to plaintiff, SHARIFE MOHAMMED not to negligently, carelessly accuse of and maliciously prosecute him with crimes.

19. That the defendants NYC, NYCPD, POLICE OFFICER RONINSKI, POLICE OFFICERS JOHN DOE 1-10 and OFFICERS WITH COMMANDING AUTHORITY of the 67th precinct, their agents, servants and/or employees owed a duty of care to plaintiff, SHARIFE MOHAMMED breached said duty in negligently and carelessly accusing him of and maliciously prosecuting him for allegedly violating New York State Penal Law crime of criminal contempt.

20. That said occurrence and the resulting prolonged incarceration and personal injuries to the said

plaintiff were caused through no fault of his own, but were caused solely and wholly by reason of the negligence of the aforementioned defendants as set forth above.

21. That by reason of the foregoing, the said plaintiff was caused to sustain prolonged incarceration, serious, harmful and permanent injuries; has been and will be caused great pain, shock, and mental anguish and suffering; has become and still continues to be sick, sore, and still continues to be sick, sore, lame and disabled; has been as he has been informed and verily believes, permanently injured; has incurred and will incur great expense for medical care and attention; has been and will be prevented from attending to his usual duties; vocation and avocation; unable to commence employment and therefore incurred substantial loss of wages for such period of time in all to his damages both compensatory and exemplary in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction and which warrants the jurisdiction of this Court.

AS AND FOR A SECOND CAUSE OF ACTION
ON BEHALF OF PLAINTIFF SHARIFE MOHAMMED

22. The plaintiff repeats, reiterates, and re-alleges each and every allegation contained in paragraphs 1 through 21 of this complaint with the same force and effect as though fully set forth herein.

23. That on or about May 24, 2015, defendant POLICE OFFICER RONINSKI, POLICE OFFICERS JOHN DOE 1-10 and OFFICERS WITH COMMANDING AUTHORITY of the 67th precinct did verbally, physically, intentionally, maliciously and deliberately abuse the plaintiff with neither provocation nor privilege, and did commit an assault and battery upon plaintiff, causing severe personal injuries and serious and permanent bodily harm to the plaintiff .

24. That at the time of such malicious prosecution, the defendants POLICE OFFICER RONINSKI , POLICE OFFICERS JOHN DOE 1-10 and OFFICERS WITH COMMANDING AUTHORITY of the 67th precinct were employees of the defendants and was acting as the

defendants' agent in doing the acts complained of herein and was acting within the scope of his authority and while he was acting or attempting to be acting in the defendant's interest.

AS AND FOR A THIRD CAUSE OF ACTION
ON BEHALF OF PLAINTIFF SHARIFE MOHAMMED

25. The plaintiff repeats, reiterates, and re-alleges each and every allegation contained in paragraphs 1 through 24 of this complaint with the same force and effect as though fully set forth herein.

26. That or about May 24, 2015, the defendants POLICE OFFICER RONINSKI, POLICE OFFICERS JOHN DOE 1-10, OFFICERS WITH COMMANDING AUTHORITY and OFFICERS WITH COMMANDING AUTHORITY of the 67th precinct was negligent in causing and allowing and/or permitting their body or parts thereof to come in contact with the person of the plaintiff in such a manner as to cause severe personal injuries and serious and permanent bodily harm to the plaintiff.

AS AND FOR A THIRD CAUSE OF ACTION
ON BEHALF OF PLAINTIFF SHARIFE MOHAMMED

27. The plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs 1 through 26 of this complaint with the same force and effect as though fully set forth herein.

28. That on or about May 24, 2015, the defendants alleged that the plaintiff was disorderly in his conduct, thereupon without warrant, probable cause or sufficient justification, arrested the plaintiff on the alleged charges and restrained and booked the plaintiff and deprived the plaintiff of his liberty.

29. That the charges filed by the defendants were false and unsupported by the facts or the evidence.

30. That the defendants knew that the charges were false and unsupported by the facts or the

evidence.

31. That in making this charge and in causing the arrest and detention of the plaintiff the defendants acted maliciously and wrongfully and with improperly and with intent to injure the plaintiff and with reckless disregard of the safety of the plaintiff as well as readily available exculpatory evidence.

32. That the charges brought by the defendants were eventually dismissed by the Criminal Court of the City of New York County of Kings and the criminal matter was disposed of in plaintiff's favor.

33. That at the time of such malicious prosecution, the defendants POLICE OFFICER RONINSKI, POLICE OFFICERS JOHN DOE 1-10, and OFFICERS WITH COMMANDING AUTHORITY of the 67th precinct were employees of the defendants NYC and NYCPD and were acting as the defendants', NYC and NYCPD, agents in doing the acts complained of herein and were acting within the scope of their authority and while they were acting or attempting to be acting in the defendants' interest.

34. That at the time of such malicious prosecution, the defendants POLICE OFFICER RONINSKI, POLICE OFFICERS JOHN DOE 1-10 and OFFICERS WITH COMMANDING AUTHORITY of the 67th precinct acted with malice and without probable cause in making complaint in making false statements against plaintiff, in that the defendants did not honestly and reasonably believe that there were grounds for the action since defendant had no facts or evidence to establish any wrongdoing on the part of plaintiff

35. That by reason of the foregoing, the said plaintiff was caused to sustain serious, harmful and permanent injuries; has been and will be caused great pain, shock, and mental anguish and suffering; has become and still continues to be sick, sore, and still continues to be sick, sore, lame and disabled; has been as he has been informed and verily believes, permanently injured; has

incurred and will incur great expense for medical care and attention; has been and will be prevented from attending to his usual duties; vocation and avocation; unable to commence employment and incurred substantial economic damages for such period of time in all to his damages both compensatory and exemplary in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction and which warrants the jurisdiction of this Court.

AS AND FOR A FOURTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF SHARIFE MOHAMMED

36. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs 1 through 35 of this complaint with the same force and effect as though fully set forth herein.

37. That on May 24, 2015 the plaintiff was charged by the defendants with criminal contempt.

38. That this arrest was illegal and without basis in fact or authority of law.

39. That plaintiff was deprived of his liberty and was held in detention cells until May 25, 2015

40. As a result of the false arrest and illegal imprisonment which the plaintiff suffered, plaintiff's health was impaired, and plaintiff suffered great mental distress.

41. That by reason of the foregoing, the said plaintiff was caused to sustain serious, harmful and permanent injuries; has been and will be caused great pain, shock, and mental anguish and suffering; has become and still continues to be sick, sore, and still continues to be sick, sore, lame and disabled; has been as he has been informed and verily believes, permanently injured; has incurred and will incur great expense for medical care and attention; has been and will be prevented from attending to his usual duties; vocation and avocation; unable to commence employment and incurred substantial economic damages for such period of time in all to his damages both compensatory and exemplary in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction and which warrants the jurisdiction of this Court.

AS AND FOR A FIFTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF SHARIFE MOHAMMED

42. The plaintiff repeats, reiterates, and re-alleges each and every allegation contained in paragraphs 1 through 41 of this complaint with the same force and effect as though fully set forth herein.

43. The aforementioned actions of defendants were so outrageous, malicious and shocking that it exceeded all reasonable bounds of decency tolerated by the average member of the community.

44. Defendants acted with the desire and intent to cause plaintiff emotional distress or acted under circumstance known to them which made it substantially certain that they would cause such emotional distress.

45. Defendants acted with utter disregard of the consequences of their actions.

46. That as a direct and proximate result of the actions by the defendants, Plaintiff was caused to suffer the intentional infliction of emotional distress.

47. By reason of the foregoing, defendants became liable to plaintiff in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

AS AND FOR A SIXTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF SHARIFE MOHAMMED
(42 U.S.C. § 1983)

48. The plaintiff repeats, reiterates, and re-alleges each and every allegation contained in paragraphs 1 through 47 of this complaint with the same force and effect as though fully set forth herein.

49. The defendants POLICE OFFICER RONINSKI, POLICE OFFICERS JOHN DOE 1-10 of the 67th and OFFICERS WITH COMMANDING AUTHORITY precinct, and certain other police officers who's names are not presently known to plaintiff, lacked reasonable suspicion to stop and detain the plaintiff, SHARIFE MOHAMMED, and further lacked any probable cause to arrest him or retain him in prolonged custody, of over a 24 hour period.

50. The wrongful stop, false detainment, assault, wrongful arrest, malicious prosecution, and other

wrongful acts conducted against the plaintiff by the defendants POLICE OFFICER RONINSKI , POLICE OFFICERS JOHN DOE 1-10 and OFFICERS WITH COMMANDING AUTHORITY of the 67th precinct, in their official and individual capacity were committed under color of law, customs, and statutes of the state of New York.

51. Under color of law, the defendants NYC and NYCPD defendant POLICE OFFICER RONINSKI, POLICE OFFICERS JOHN DOE 1-10 and OFFICERS WITH COMMANDING AUTHORITY of the 67th precinct in their official and individual capacity deprived the plaintiff SHARIFE F MOHAMMED of his Fourth, Fifth, and Fourteenth Amendment rights to protection from unlawful search and seizure, Equal Protection and Due Process, by falsely arresting, wrongfully detaining, unlawfully, falsely charging the plaintiff with criminal charges, for which there is no evidence or substantiation of any kind and maliciously prosecuting.

52. The accusations of wrongful actions leveled against plaintiff were false and were an attempt to cover up the false arrest, abuse of process, failure to properly investigate, intentional and false imprisonment, false accusations, discriminatory harassment, malicious prosecution, defamation and abuse of process which has been inflicted by defendants on plaintiff.

53. The false arrest of plaintiff SHARIFE MOHAMMED without probable cause, and other wrongful acts conducted against the plaintiff by defendants, including, but not limited to defendants' unconstitutionally seizing, falsely arresting, intentionally and falsely imprisoning and detaining, falsely accusing, assaulting, discriminatorily harassing, defaming, and maliciously charging SHARIFE MOHAMMED constitutes a violation of plaintiff's rights, secured by the Fourth Amendment to the United States Constitution, to be free from unreasonable searches and seizures. Such actions were negligent, reckless, unreasonable and unauthorized, as defendants had a duty to not subject plaintiff to false arrest and detention and summary punishment, but failed to prevent same and breached their duty.

54. The defendants NYC and NYPD defendant POLICE OFFICER RONINSKI, POLICE OFFICERS JOHN DOE 1-10 and OFFICERS WITH COMMANDING AUTHORITY of the 67th precinct, in their official and individual capacity acted under color of law to deny the plaintiff his constitutional rights to due process and freedom from seizure, by wrongfully detaining the plaintiff at the Kings County Central Booking and Riker's Island Correctional Center for more than 24 hours without charging him with any criminality but holding him under the threat of imprisonment for an indeterminate period of time, without providing a reasonable basis and/or investigation warranting custody, or other due process guarantees secured to the plaintiff by the Fifth and Fourteenth Amendments of the United States Constitution.

55. Such abuse of process was continued by the defendants NYC, NYCPD, POLICE OFFICER RONINSKI, POLICE OFFICERS JOHN DOE 1-10 and OFFICERS WITH COMMANDING AUTHORITY of the 67th precinct in their official and individual capacity, in their refusal to adequately investigate the charges against the plaintiff and to properly review and investigate the actions of defendant officers and officials for their actions against the plaintiff. Specifically, defendants failed to investigate and verify the veracity of the plaintiffs' claims, despite the lack of any significant hearing or consideration by the defendants NYC, NYCPD, POLICE OFFICER RONINSKI, POLICE OFFICERS JOHN DOE 1-10 and OFFICERS WITH COMMANDING AUTHORITY of the 67th precinct in their official and individual capacity for the substantial evidence supporting plaintiff's innocence-such evidence includes a court order vacating an order of protection, which was provided by the plaintiff to POLICE OFFICER RONINSKI, POLICE OFFICERS JOHN DOE 1-10 and OFFICERS WITH COMMANDING AUTHORITY of the 67th precinct prior to the arrest and prosecution.

56. As a consequence of defendants' wrongful actions, intentional assault and battery, negligent behavior, and violation of state and federal laws, plaintiff was deprived of his freedom, was subject

to great physical harm, was made to suffer great pain and suffering, and was subjected to great fear and terror and personal humiliation and degradation, and continues to suffer pain and mental and emotional distress as a result of the aforesaid unlawful conduct of defendants NYC and NYCPD defendant POLICE OFFICER RONINSKI, POLICE OFFICERS JOHN DOE 1-10 and OFFICERS WITH COMMANDING AUTHORITY of the 67th precinct in their official and individual capacity.

57. That said occurrence and the resulting personal injuries to the said plaintiff were caused through no fault of his own, but were caused solely and wholly by reason of the negligence of the aforementioned defendants as set forth above.

58. That by reason of the foregoing, the said plaintiff was caused to sustain serious, harmful and permanent injuries; has been and will be caused great pain, shock, and mental anguish and suffering; has become and still continues to be sick, sore, and still continues to be sick, sore, lame and disabled; has been as he has been informed and verily believes, permanently injured; has incurred and will incur great expense for medical care and attention; has been and will be prevented from attending to his usual duties; vocation and avocation for such period of time in all to his damages both compensatory and exemplary in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction and which warrants the jurisdiction of this Court.

WHEREFORE, the plaintiff(s) demands judgment against the in an amount which exceeds the jurisdictional limits of all lower courts and which warrants the jurisdiction of this Court, together with the costs and disbursements of each cause of action.

Dated : Elmhurst, New York
April 6, 2016

Yours, etc.



ROYTBLAT & KALANT, PLLC
Attorneys for Plaintiff
91-31 Queens Blvd. Ste. 313
Elmhurst, New York 11373

STATE OF NEW YORK)
COUNTY OF QUEENS)

The undersigned, an attorney, admitted to practice in the Courts of the State of New York.
The undersigned affirms that the following statements are true under the penalties of perjury.

That deponent is associated with the attorney for the plaintiff in the within action; that deponent has read the foregoing SUMMONS AND VERIFIED COMPLAINT and knows the contents thereof; that same is true to deponent's own knowledge, except as to the matters therein stated to be alleged upon information and belief, and that as to those matters deponent believes it to be true. Deponent further says that the reason this verification is made by deponent and not by plaintiff is that plaintiff resides outside of the County where your deponent holds his office.

The grounds of deponent's belief as to all matters not stated upon deponent's knowledge are as follows:

Information and investigation in the file.

DATE: Elmhurst, New York
April 6, 2016

/S/Alexander Roytblat
ALEXANDER ROYTBLAT, ESQ.

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AUTHORITY OVER THE POLICE OFFICERS CLAIMED HEREIN, all in their individual and official
capacities
Defendant (s),
-----X

SUMMONS AND VERIFIED COMPLAINT

ROYTBLAT & KALANT, PLLC

Attorneys for Plaintiff

Office and Post Office Address, Telephone, Facsimile

91-31 Queens Blvd. Ste. 313

Elmhurst, New York 11373

TELEPHONE (718) 872-6374

FACSIMILE (718) 872-6375

"WE DO NOT ACCEPT SERVICE BY ELECTRONIC TRANSMISSION (FAX)"

Attorney(s) for

Service of a copy of the within is hereby admitted

Dated:

.....
Attorney(s) for

PLEASE TAKE NOTICE



NOTICE OF ENTRY That the within is a (certified) true copy of an ORDER entered in the office of the clerk of the within named court on , 2016.



NOTICE OF SETTLEMENT That an Order of which the within is a true copy will be presented for settle to the Hon. one of the judges of the within named court,
at
on , 2016, at 10:00 a.m.

ROYTBLAT &
KALANT, PLLC
Attorneys for Plaintiff
91-31 Queens Blvd. Ste. 313
Elmhurst, Queens 11373
(718) 872-6374